

26STCV06814 26STCV06814

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C735%2C06%2F23%2F2026

Source SHA-256: 7c7df356b68104fa31083fb237c404a99e48bbe8f4c69c739c7f468ec95308c1

Case Number: 26STCV06814 Hearing Date: June 23, 2026 Dept: 735

Sandoval v. Drivetime Car Sales Company, LLC,

et al.

Defendants Drivetime Car Sales Company, LLC

and Bridgecrest Acceptance Corporation's Motion to Compel Arbitration

BACKGROUND

On March 2, 2026, Plaintiffs Angel Sandoval

and Sandra Sandoval filed a complaint against Defendants Drivetime Car Sales

Company, LLC, Bridgecrest Acceptance Corporation, Silver Rock Warranty Company

and Philadelphia Insurance Company, asserting causes of action for violations

of the CLRA and UCL and fraud. Plaintiffs allege Defendants sold them a vehicle

with mechanical issues knowing the issues were not covered by the applicable

warranty.

DISCUSSION

Defendants move to compel arbitration before the

American Arbitration Association based on the arbitration provision in the Conditional

Sale Contract and Security Agreement executed by Plaintiffs on April 6, 2023.

The agreement provides,

[A]t Your or Our election, any claim,

dispute, or controversy arising from or relating to the Contracts or the

relationship between You and Us ("Claim" or "Claims"),

whether arising in contract tort, pursuant to statute, regulation, ordinance,

or in equity or otherwise, shall be resolved through binding and final

arbitration instead of through court proceedings. This includes any past,

present, or future dispute arising out of or relating to: (1) the Contracts,

(2) the products or services covered by the Contracts, (3) the Vehicle, (4)

Your purchase and/or financing of the Vehicle, including Your credit

application and the financing terms, (5) advertisements, promotions, or oral or

written statements related to the Contracts or the Vehicle, (6) Your personal

information, (7) communications involving telephones, automatic dialing

systems, artificial or prerecorded voice messages, text messages, emails or

facsimile machines, (8) the collection or servicing of the Contracts, and (9)

the relationship between You and Us resulting from any of the foregoing.

This

action arises from the contract between Plaintiffs and moving Defendants.

Defendants have met their burden to establish the existence of an agreement to arbitrate. Plaintiffs have not opposed this motion to establish any defenses to enforcement.

CONCLUSION

The Court grants Defendants' motion to compel arbitration before the American Arbitration Association.

The action is stayed.

Defendants

to give notice.